

CAN.dy Dance Project Bylaws

CAN.dy Dance Project Bylaws — v1

Location: San Jose, Santa Clara County, California

Article 1 — Name

The name of this unincorporated association is **CAN.dy Dance Project** (“CAN.dy” or the “Team”).

Article 2 — Purpose

CAN.dy is a project-based community dance team that showcases sensual movement, including but not limited to heels and chair dance, through rehearsals and project-based live performances and video productions.

Article 3 — Nonprofit intent (informal)

CAN.dy is organized for community/artistic purposes and is not intended to distribute profits to individuals. Reasonable payments and reimbursements for Team expenses are permitted as provided in these bylaws.

Article 4 — Participation eligibility

1. **Age.** Participation is limited to individuals **18 years or older**.
2. **Project casting.** Auditions and casting for any Project are at the discretion of the **Project Choreographer(s)**.
3. **General participation.** There is no audition requirement to be a general Team participant, subject to conduct and safety rules and project needs.

Article 5 — Leadership structure (Officers)

1. **Co-Directors.** The Team will have **two (2) Co-Directors**. Co-Directors are **not elected positions**.
2. **Treasurer.** The Team will have a **Treasurer**.
3. **Secretary.** The Team will have a **Secretary**.
4. **Leadership Team.** The Co-Directors, Treasurer, and Secretary constitute the **Leadership Team**.

Article 6 — Officer duties

1. **Co-Directors (joint).** The Co-Directors are responsible for overall direction and management of CAN.dy, including: selecting Projects; approving fundraisers and gigs; managing external relationships and contracts; enforcing safety/brand standards; and supervising appointed roles.
2. **Treasurer.** The Treasurer is responsible for financial administration, including: maintaining the Team’s bank account(s); processing payments; tracking income/expenses by Project; handling reimbursements; ensuring required approvals are obtained; and providing monthly financial reports to the Leadership Team.
3. **Secretary.** The Secretary is responsible for administrative records, including: maintaining the bylaws and key policies; keeping a roster of officers and members in good standing; keeping minutes or written consents for Leadership actions; and maintaining copies of key agreements.
4. **Delegation.** Officers may delegate tasks but remain responsible for oversight within their scope.

Article 7 — Officers: eligibility, elections, terms, and vacancies

1. **Member in good standing (for voting/office).** A “member in good standing” is an individual who:
 - a) has participated in **at least two (2) Projects in the last twelve (12) months**, and
 - b) is not currently suspended/removed and has satisfied any current financial obligations to the Team.
2. **Eligible voters.** Only members in good standing may vote in officer elections and tie-break votes.
3. **Eligibility to run for office (Treasurer/Secretary).** Any member in good standing may run for Treasurer or Secretary, **plus** any additional candidate approved unanimously by both Co-Directors.

4. **Elections (Treasurer and Secretary).** The **Treasurer** and **Secretary** will be elected by members in good standing pursuant to the CAN.dy Officer Election Procedure, and elections will be held **annually in November**.
5. **Co-Directors not elected. Co-Directors are not elected positions.** Co-Director selection, continuation, resignation, and replacement are governed by Section 7.6.
6. **Co-Director selection and replacement.** The individuals serving as Co-Directors at the time these bylaws are adopted will continue as Co-Directors unless they resign or are replaced. A Co-Director may be replaced only by **unanimous written agreement of both Co-Directors** (or, if a Co-Director position is vacant, by the written appointment of the remaining Co-Director). The Co-Directors may also unanimously appoint an additional Co-Director if desired, effective upon written notice.
7. **Terms.** The Treasurer and Secretary serve until the next November election or until resignation/removal.
8. **Vacancies (Treasurer/Secretary).** If the Treasurer or Secretary role becomes vacant between elections, the Co-Directors may appoint an interim officer until the next November election (or until a special election is held, if the Co-Directors call one).

Article 8 — Projects; Project Choreographers (“Artistic Directors”)

1. **Terminology.** “Project Choreographer” and “Artistic Director” are interchangeable terms in CAN.dy.
2. **Project proposals.** CAN.dy will accept project proposals on an ongoing basis from any person(s).
3. **Project selection timing.** The Co-Directors will select the next Project from the proposal pool **no later than one (1) month before the end of the current Project**, when practicable.
4. **Appointment.** Project Choreographer(s) are appointed by mutual agreement of the Co-Directors on a per-project basis.
5. **Creative authority.** Subject to Co-Director veto rights in Section 8.6, the Project Choreographer(s) have creative and operational authority for their Project, including: casting; rehearsal count and frequency; attendance policy for the Project (including stricter project-specific requirements if desired); and setting the Project date.
6. **Co-Director veto (safety/budget/brand).** The Co-Directors retain veto authority over Project decisions necessary to address:
 - a) participant **safety**, including physical safety and harassment prevention;
 - b) **budget/financial** constraints; and
 - c) Team **brand/reputation** and public-facing risks.

Article 9 — Decision-making and tie-break voting

1. **Regular Leadership Team meetings.** The Leadership Team will meet at least **monthly**. The regular target meeting date is the **last Sunday of each month**, unless the Leadership Team decides otherwise. Regular Leadership Team meetings are open to any interested members, except that the Leadership Team may close any portion of a meeting for sensitive matters.
2. **Leadership decisions.** Ordinary Team business may be decided by majority vote of the Leadership Team, except where these bylaws require Co-Director approval.
3. **Co-Director disagreement.** If the Co-Directors disagree on any decision (business or creative), the decision will be submitted to a vote of eligible voters under Section 9.4, unless a decision is required immediately for safety.
4. **Eligible voters (tie-break).** Eligible voters are **members in good standing** as defined in Article 7.
5. **Voting method and threshold.** Votes may be conducted online. The decision passes by a **simple majority of votes cast**. Voting will remain open for **48 hours** from notice.
6. **Notice.** The Leadership Team will provide the question to be voted on and relevant context in writing at the start of the 48-hour window.
7. **Emergency safety exception.** For immediate safety issues, either Co-Director may pause a rehearsal/activity pending rapid Leadership review; the tie-break vote may follow if needed.

Article 10 — Dues, payments, refunds

1. **Project-based dues formula.** Dues are set per Project as follows:
 - **Dancers:** (Number of scheduled rehearsals) $\times$ **\$20**
 - **Project Choreographer(s)/Artistic Director(s):** (Number of scheduled rehearsals) $\times$ **\$10**
2. **Due date.** Dues are due **one (1) week before** the first rehearsal of the Project, unless the Co-Directors state otherwise in writing for that Project.
3. **Nonpayment.** If dues are not paid within **one (1) week after** the due date, the participant's spot may be forfeited and removal from the Project is automatic.
4. **Refunds.** If a participant drops out, CAN.dy may provide **prorated refunds** based on rehearsals attended before withdrawal, as determined by the Treasurer consistent with available funds and any nonrefundable expenses already incurred.
5. **Future adjustments.** The Leadership Team may adopt sliding scale or hardship accommodations in the future if funds allow.

Article 11 — Finances and controls

1. **Approving fundraisers and gigs.** Any fundraiser or paid gig/event commitment requires approval of **both Co-Directors**.
2. **Authorized signers.** The bank account will have the **two Co-Directors and the Treasurer** as authorized signers (as the bank allows).
3. **Studio fees.** The Treasurer may pay **studio fees** without additional approval.
4. **All other spending.** Any non-studio-fee spending requires **authorization from both Co-Directors** in writing (message/email is acceptable).
5. **Reimbursements.** Reimbursements are allowed with a receipt and/or proof of purchase submitted within **30 days** of the expense.
6. **Monthly reporting.** The Treasurer will provide a **monthly** report to the Leadership Team showing balances and recent transactions.
7. **Officer reimbursement approval (conflict control).** Reimbursements to any officer require approval by **both Co-Directors**. Reimbursements to a Co-Director require approval by the **other Co-Director** and the Treasurer. No person may approve their own reimbursement.
8. **Project budgets (recommended).** For each Project, the Co-Directors (with input from the Project Choreographer(s) and Treasurer) may set a Project budget. CAN.dy will not intentionally approve Project expenses that exceed expected Project income unless both Co-Directors approve a written exception.
9. **Access to financial records.** The Treasurer will provide reasonable read-only access to financial reports/records to the Co-Directors and Secretary for oversight and continuity.

Article 12 — Payment platforms and reimbursements

1. **Dues collection.** Dues should be collected through a payment platform approved by the Co-Directors. The Co-Directors may adopt, change, or replace the platform at their discretion, provided that payments are processed through the Team's account(s) and not through personal accounts of any participant or officer.
2. **No peer-to-peer payments.** CAN.dy will avoid peer-to-peer payment services for Team transactions when feasible.
3. **If an individual pays on behalf of the Team.** If a participant or officer must pay a Team expense personally (e.g., to secure time-sensitive studio costs), they may request reimbursement under Article 11.5, subject to required approvals and available funds.

Article 13 — Appointed roles (including Social Media Manager, Outreach Lead, and Project Coordinator)

1. **Appointment.** The Co-Directors may appoint non-officer roles on a **per-Project or ongoing basis** and define the scope in writing where practicable.

2. **Project Coordinator.** The Co-Directors may appoint a **Project Coordinator** to support the Project Choreographer(s) and help execute Projects. Unless otherwise defined in writing for a specific Project, the Project Coordinator’s responsibilities may include:
 - a) coordinating schedules, rehearsal logistics, and project calendars;
 - b) serving as a primary liaison with venues, studios, and event organizers;
 - c) coordinating day-of logistics and communications; and
 - d) supporting administrative needs of the Project Choreographer(s) and Co-Directors.
 The Project Coordinator does **not** have independent authority to bind CAN.dy to contracts or spending commitments unless expressly authorized in writing by both Co-Directors.
3. **Social Media Manager — approval during probation.** For the first **one (1) month** after appointment, the Social Media Manager must obtain approval from at least **one (1) Co-Director** before posting content on Team channels.
4. **After probation.** After the probationary period, the Social Media Manager may post without prior approval while still adhering to Team standards and any Co-Director direction.
5. **Outreach Lead.** The Co-Directors may appoint an **Outreach Lead** to support community outreach, partnership cultivation, and external relationship follow-up. Unless otherwise defined in writing, the Outreach Lead’s responsibilities may include:
 - a) responding to general outreach inquiries and partnership leads;
 - b) coordinating sponsor, collaborator, or community follow-up;
 - c) supporting event/community promotion in coordination with the Co-Directors and Social Media Manager; and
 - d) helping maintain outreach records, contact lists, or opportunity trackers.
 The Outreach Lead does **not** have independent authority to bind CAN.dy to contracts, publicity commitments, or spending commitments unless expressly authorized in writing by both Co-Directors.
6. **Removal.** Appointed roles may be ended by either Co-Director, or by majority vote of the Leadership Team.

Article 14 — Conduct, consent, and rehearsal policies

1. **Respect & communication.** Participants must treat others with respect and communicate professionally.
2. **Consent-based partnering.** All partnering/contact choreography must be **consent-based**; anyone may decline any contact without retaliation.
3. **Base attendance notice.** Dancers must provide at least **two (2) hours’ notice** if they will miss a rehearsal, unless notice is not reasonably possible due to illness, injury, or other serious unforeseen circumstance. Project Choreographer(s) may adopt a stricter attendance policy for a specific Project.
4. **Closed rehearsals.** Rehearsals are closed to nonparticipants unless the Project Choreographer(s) and Co-Directors approve otherwise.
5. **Further code of conduct.** The Leadership Team may adopt a more detailed code of conduct consistent with these bylaws.

Article 15 — Discipline, dismissal, and appeal

1. **Behavioral dismissal.** Dismissing someone from the Team or a Project for behavioral issues requires a **unanimous** decision of the Project Choreographer(s) and both Co-Directors.
2. **Nonpayment dismissal.** Dismissal for nonpayment is handled under Article 10.
3. **One appeal.** A dismissed participant may submit **one appeal**. The appeal may be made **in writing or in person**. After review, the same decision-makers will **revote** once; that outcome is final.

Article 16 — Media release (photo/video)

1. **Consent to recording.** CAN.dy projects may involve photo/video recording during rehearsals, performances, and shoots.
2. **Grant of rights.** By participating, individuals grant CAN.dy permission to use their name, image,

likeness, and performance in photo/video captured in connection with CAN.dy activities for Team promotion, documentation, and distribution (including social media), without additional compensation.

3. **Condition of participation.** Participation in CAN.dy activities/projects is conditioned on consenting to photo/video recording and the media release in this Article; individuals who do not consent may not participate.

Article 17 — Dissolution

1. **Approval to dissolve.** CAN.dy may be dissolved upon written approval of both Co-Directors and confirmation by Leadership Team vote.
2. **Winding up.** Upon dissolution, the Leadership Team will:
 - a) pay or provide for outstanding debts and obligations; then
 - b) donate any remaining funds to a **charity selected by the Leadership Team prior to dissolution.**
3. **No private distribution.** Remaining funds will not be distributed to individuals, except for legitimate final reimbursements or refunds already owed under these bylaws.

Article 18 — Amendments

These bylaws may be amended only with the approval of **both Co-Directors**. If the Co-Directors disagree, the tie-break vote process in Article 9 applies.

Article 19 — Contract and commitment authority

1. **Who may sign.** Only a Co-Director may sign contracts or make binding commitments on behalf of CAN.dy, unless both Co-Directors provide written authorization naming another person and defining the scope.
2. **Required review.** Before signing venue/studio/event agreements (or any agreement involving money, cancellation fees, insurance requirements, or publicity rights), the signing Co-Director will share the agreement with the other Co-Director for review when practicable.
3. **Limits.** The Project Coordinator and other appointed roles may communicate with venues and organizers but may not bind CAN.dy without written authorization under Section 1.

Article 20 — Electronic Acknowledgment and Records

1. **Electronic acknowledgment.** Where these bylaws or Team policies call for a participant to read, agree to, acknowledge, or consent to anything — including these bylaws and the media release in Article 16 — such acknowledgment may be given electronically through the Team's official system or platform. An affirmative action taken by a participant (such as checking a box or clicking a clearly labeled button next to the relevant statement) constitutes valid and binding acknowledgment and consent, with the same effect as a handwritten signature.
2. **Versioned records.** The Team may maintain acknowledgments against a specific version of a document. When a document is revised, the Team may require participants to re-acknowledge the current version. Each acknowledgment record identifies the participant, the specific document version acknowledged, and the date and time of acknowledgment.
3. **Retention and integrity.** Acknowledgment records are retained indefinitely and are maintained on an append-only basis; they are not altered or deleted after creation, except as required by law.
4. **Electronic notices.** Notices required under these bylaws (including dues reminders, late/forfeiture notices under Article 10, and voting notices under Article 9) may be delivered electronically to the participant's email address or through the Team's system.